

BASIS FOR CRIMINAL ACTIVITIES

UK NEXUS

1. Documentary evidence showing Mr. Zahmoul's overt acts related to the laundering of criminal property derived from his ex-girlfriend (Ms. Molina)'s prostitution enterprise Part 7 of Proceeds of Crime Act 2002 ('POCA') Money Laundering Offenses and the Fraud Act of 2006.
2. Mr. Zahmoul's acts merit a referral to the FCA in their determination of his honesty, integrity and reputation in accordance with FIT 2.1 which states that "*the FCA will have regard to all relevant matters including, but not limited to, those set out in FIT 2.1.3 G which may have arisen either in the United Kingdom or elsewhere. The FCA should be informed of these matters (see SUP 10A.14.17 R and SUP 10C.14.18R) ...*" "*In considering the matters in FIT 2.1.1 G, the FCA will look at whether the person's reputation might have an adverse impact upon the firm for which the controlled function is or is to be performed and at the person's responsibilities.*" The matters referred to in FIT 2.1.1 G to which the FCA will have regard clearly state that "*particular consideration will be given to offences of dishonesty, fraud, financial crime or an offence under legislation relating to companies, building societies, industrial and provident societies, credit unions, friendly societies, banking, other financial services, insolvency, consumer credit companies, insurance, consumer protection, money laundering, market manipulation and insider dealing, whether or not in the United Kingdom.*"

RELEVANT TIME PERIOD

2004 through Current

UK NEXUS

1. Our marital assets were derived from Mr. Zahmoul's employment with Barclays, London, England, United Kingdom, a UK entity;
2. Throughout the relevant time period ("RTP") our marital assets have been held in accounts opened and maintained by Mr. Zahmoul in the UK with:
 - a) Barclays
 - b) Metro Bank

- c) Wise
 - d) Revolut
3. Based on statements made by Ms. Molina, Mr. Zahmoul facilitated her access to the UK banking system by opening an account at [Transfer] Wise and facilitating the opening of subsequent accounts in Portugal and the United States;
 4. Throughout a portion of the RTP, namely 2014 through current, Mr. Zahmoul maintained cryptocurrency assets with Coinbase Ireland Ltd. and Coinbase Europe Ltd., UK entities which he claims to have liquidated in September 2022. These cryptocurrency holdings included (i) the product of prostitution; and/or (ii) mining, staking or farming revenue which Mr. Zahmoul failed to disclose on his UK tax returns;
 5. Mr. Zahmoul laundered the proceeds of criminal activity by directing and facilitating the collection of cash which he subsequently transported into the UK and was pictured at the marital home located in London, England;
 6. Mr. Zahmoul laundered the proceeds of criminal activity by directing and facilitating the collection of cash which he subsequently transported into the UK and placed in a safety deposit box at Metro Bank.
 7. Mr. Zahmoul laundered the proceeds of criminal activity by directing and facilitating the collection of cash by his employer Phil Jenkins who subsequently layered and integrated said proceeds of criminal activity by effecting an international wire transfer into the Wise account managed and controlled by Mr. Zahmoul;
 8. Mr. Zahmoul laundered the proceeds of criminal activity by directing and facilitating the collection of cash by his employer Phil Jenkins who subsequently layered and integrated said proceeds of criminal activity by paying for Ms. Molina's rent on a UK property at the direction of Mr. Zahmoul;
 9. Mr. Zahmoul directed and furthered the criminal activity engaged in by Ms. Molina as well as the pickup of cash derived from said criminal activity via WhatsApp messages on his UK mobile, namely +44.7575777707.
 10. Mr. Zahmoul maintained the ownership of shares in Coinbase with Forte Securities, a UK entity with for which he previously served as an Appointed Representative under FCA ref. nb. 478424. Mr. Zahmoul allegedly liquidated said shares through Forte Securities and its' associated entities in the UK and the Commonwealth, specifically Sydney, Australia, in September of 2022;
 11. Mr. Zahmoul made investments in and obtained investment returns constituting marital assets from at least the following UK-based investments:
 - a) Temporis
 - b) Cornish Lithium

12. Mr. Zahmoul maintained sole and exclusive control of all marital assets derived from executive compensation generated in the UK and maintained via UK banking and investment relationships throughout the relevant time period (“RTP”);
13. Mr. Zahmoul is registered with the FCA;
14. Mr. Zahmoul is the Founder and Director of two UK entities duly registered at Company’s House, namely:
 - a) Emvyria
 - b) Emvyria Trading;
15. Mr. Zahmoul has filed UK taxes with HMRC throughout the relevant time period (“RTP”);
16. Mr. Zahmoul resided in the UK during the majority of the RTP and specifically during the years 2009 through 2020;
17. Mr. Zahmoul has and continues to travel and engage in business activities in the UK;
18. Mr. Zahmoul managed the books and records and facilitated the laundering and flow of illicit funds using Xerox, a leader in cloud accounting services for small businesses which expanded into the UK in 2008.

BACKGROUND TO OVERT ACTS ENGAGED IN AND FURTHERED BY MR. ZAHMOUL

1. Per the Respondent’s own timeline, the Respondent met Ms. Molina in 2017 and entered into an amorous relationship with her in 2018.
2. The Respondent had a documented history of solicitation of prostitution services and knew Ms. Molina to render prostitution services and serve as a Madame in soliciting and arranging for prostitution services to others. Ms. Molina’s prostitution services have been corroborated by her own admissions and statements in the public domain.
3. Given his previous history of solicitation of prostitution services, the Respondent is believed to have had familiarity with the advertising of said services through Instagram and other social media/internet based platforms.
4. Between on or about 2015 and 2020 the Respondent worked for Phil Jenkins and Sphere Digital.
5. The Respondent and Phil Jenkins are understood to have shared the practice of solicitation of prostitution services.
6. Per Ms. Molina’s own statements *“Karim lies very much. Karim is addicted to prostitutes, and he spends money on that. That’s what Karim does. And all his friends. That’s why he was so obsessed with me.*

Because I was providing that.”When asked whether she knew Phil Jenkins, Ms. Molina responded “Yes, I met him. I sent him girls.”

7. In a 6 June 2018 WhatsApp exchange between Mr. Zahmoul and Phil Jenkins, Phil Jenkins asks the Respondent “*Your friend find a woman for me, I need her for 3 days. Friday, sat and sun.*” The Respondent responds with a video subsequently messaging “*She sent me this for you yesterday*” to which Phil Jenkins responds: “*She does not have someone more thin?*”
8. Per Mr. Zahmoul’s own statements he was an early adopter of cryptocurrency and leveraged his past expertise as a Wall Street and London banker to mine and trade cryptocurrency and in particular Bitcoin (“BTC”).
9. Per Mr. Zahmoul’s own disclosures, he has held a cryptocurrency account with Coinbase since at least December 2014.
10. Per Mr. Zahmoul’s own documentation transferred to me via Signal messenger, he managed the books and records for Ms. Molina’s prostitution services with knowledge regarding the criminalization of prostitution in Dubai. In view of Mr. Zahmoul’s professional background, status as a sophisticated investor and registration with the FCA, Mr. Zahmoul knew or should have known that disguising the true source of the funds generated by Ms. Molina’s prostitution enterprise and concealing their true source of funds constituted a criminal act in the UK under the Sexual Offences Act of 2003 and Modern Slavery Act of 2015. Had Mr. Zahmoul not known that said funds constituted criminal property, he would not have gone through the lengths necessary to launder the proceeds of Ms. Molina’s prostitution enterprise in the manners described below.

MR. ZAHMOUL’S MANAGEMENT AND FURTHERANCE OF MS. MOLINA’S PROSTITUTION ENTERPRISE

1. In a publicly available video she posted on YouTube Ms. Molina reiterates “*And let me tell you, Karim Zahmoul is the brain behind my business, and everybody knows what business I do. He is the brain, he was the mastermind behind everything!*”

<https://www.youtube.com/watch?v=lCONR0jV33o>

2. WhatsApp conversations maintained by Mr. Zahmoul evidence Ms. Molina’s solicitation of women for the provision of prostitution services e.g.:

- a) On 22 June 2018 Ms. Molina sends an email to bojanakrsmanovic192@gmail.com titled “Important Job Offer Urgent” saying “I’m trying to get you a job with a girl that knows your agent, this is my direct client so I am offering 25.000 dollars per day for 2 to 4 days in Monaco with price (prince) from arabia saudita (Saudi Arabia), he is young 35 years old, I will send pic. U will have business class tickets and also your own hotel room all inclusive, you will see the prince for dinner and more for a couple of hours and that’s it. Please contact me to my Whatsapp +447747317925.” Bojana Krsmanovic, often just called Bo, is a Serbian model born in Krnjaca, Belgrade, in 1992. <https://www.metromodels.com/en/talent/441-bojana-krsmanovic/#:~:text=Bojana%20Krsmanovic%2C%20often%20just%20called,Krnjaca%2C%20Belgrade%2C%20in%201992.>
- b) On 23 June 2018 Ms. Molina sends an email to bookings.leannabartlett@gmail.com titled “40k Job” saying “Hi I have a very exclusive french client for you dear he will pay 40k a day if you go see him to France. Im molly, molly.gallagher.1 is my Instagram +447747317925 my Whatsapp. Leanna Bartlett is a Ukranian model born in Kherson, Ukraine in 1985. <https://www.leannabartlett.com/>
3. Additional Whatsapp conversations maintained by Mr. Zahmoul evidence the following conversation between Ms. Molina and Sheikh Salah bin Fayed Al Nahyan. Sheikh Falah bin Zayed bin Sultan bin Zayed bin Khalifa Al Nahyan (Arabic: **فلاح بن زايد سلطان آل نهيان**) (born 7 November 1970) is a member of Al Nahyan family of Abu Dhabi. He is the son of Zayed bin Sultan Al Nahyan, the founder, first president of United Arab Emirates and ruler of Abu Dhabi. He is the half brother of Sheikh Khalifa bin Zayed Al Nahyan, the current President of the United Arab Emirates. https://en.wikipedia-on-ipfs.org/wiki/Falah_bin_Zayed_Al_Nahyan.
4. An excerpt of the Whatsapp conversation between Ms. Molina and Sheikh Salah bin Fayed Al Nahyan reads:

Sheikh: Ok, send me pictures of the girls you send me and how much each. Where are you now?

OM: SENDS PICTURE OF FIRST GIRL – This one was 4k a day, she been there 5 days, u gave her only 4,500 \$. So 14k missing.

OM: SENDS PICTURE OF SECOND GIRL – This one u said 20k, u gave her zero.

Sheikh: When did they come, which date?

OM: I will check. 22/23 of March – FORWARDS PDF OF DOCUMENT 1 TITLED ‘MORAGA MILENA AUGUSTINA MS’ AND PDF OF DOCUMENT 2 TITLED ‘PINHEIRO FELIPE MARTINSNAT ...’.

Sheikh: Hi – RESENDS PICTURE OF SECOND GIRL – How much for her?

OM: She was 20k. You have (gave) her 0, and I paid her with my money 10k, that’s what I had at that moment in cash to give her.

Sheikh: 20k dorhmes (dirhams)

OM: No, you said USD. It was 14k her, 6k me. I gave her 10k. I didn’t have more to give her. And to Milena u gave her 4,500 \$ and I gave her 5k \$.

Sheikh: That’s ok for her. What’s your name?

OM: The thing is that she was 8k 2 days, and she been in same room with you for 5 days.

Sheikh: Ok dear, what’s your name?

OM: Ema.

Sheikh: From where?

OM: Argentina.

Sheikh: Nice, I will send 30k.

OM: Thank you.

Sheikh: Because I don’t pay for traveling day.

OM: But she was with you.

Sheikh: So is ok like this?

OM: She didn’t go to hotel. Never. Until she got her flight.

Sheikh: So what?

5. Per Ms. Molina’s own accounts in the media and transcribed WhatsApp conversation with me, Mr. zahmoul was “the brain behind my business. I was not doing anything until I met him. He was the brain, he told me you should do this, you should do that. I have proof of that.” “Karim was very into my business.

He always wanted to collect the money from the girls. He always wanted to be there.” “He collected commissions from my girls for many months. He was ery happy to do it. He wanted to do it.” “He told me he was in Miami; he was hanging out with some of the girls that work for me.”

<https://www.youtube.com/watch?v=lCONR0jV33o>

6. Mr. Zahmoul facilitated Ms. Molina’s access to the UK financial system by assisting her with the opening of the account identified by IBAN BE23 9670 9691 at Transferwise citing her address as 38 Stadium Street, London, England SW10 0PT.
7. Per Mr. Zahmoul’s own notes, he relied on his status as a sophisticated financier, his business acumen regarding the structuring and taxation of business entities and his familiarity with the Gulf region to:
 - a) Research the formation of a front company in the Fujairah Creative City, a tax-free zone in Dubai, through which the Respondent furthered and invoiced Ms. Molina’s prostitution services;
 - b) Register Blue Ocean Services FZE (“Blue Ocean”) on 23 January 2019 under Ms. Molina’s ownership falsely citing its primary business activity as “Event Management, Business Consultancy, Travel Consultancy” in order to disguise and conceal the true nature of Ms. Molina’s activities and the associated source of funds received.
8. Per Mr. Zahmoul’s own records transferred to me via Signal messenger, Mr. Zahmoul maintained:
 - a) Copies of the Transferwise Statements for the account identified by IBAN BE23 9670 9691 since at least March 2018;
 - b) Book-keeping records maintained using Xerox small business accounting software detailing the purpose of credits and debits. Said classifications identified the following among other related expenses and income:
 - c) The payment of Instagram services;
 - d) Payments to Virtuzone UAE FZ LLC, company formation specialists through which the front company Blue Ocean was formed and established by the Respondent;
 - e) Payments to women for travel, commissions and alleged modeling jobs; and
 - f) The receipt of payments from various individuals including but not limited to payments totaling at least € 74,000 from Sheikh Salah bin Fayed Al Nahyan between December 2018 and May 2019.
 - g) The tracking of funds flows in Euros, Sterling, AED, USD and BTC allocated amongst Phil (Jenkins); Metro 1 and Metro 2 known to be accounts maintained by the Respondent at Metropolitan Bank in London, England; KZ *i.e.* the Respondent Karim Zahmoul himself; Oli Transferwise and Oli Paypal

referencing Ms. Molina's Transferwise and Paypal accounts; Oli Cash referencing Cash generated by Ms. Molina's prostitution enterprise; Hammy, Alfie, Oli's Mum referencing Ms. Molina's mother; Shirin and Ocean Blue FZE referencing the front company Blue Ocean and showing balances in USD of:

\$270,000 as at 12 December 2018;

\$273,850 as at 16 December 2018;

\$303,251 as at 20 December 2018; and

\$300,462 as at 4 January 2019.

MR. ZAHMOUL'S LAUNDERING OF CRIMINAL PROCEEDS VIA CASH PICK UPS FACILITATED BY PHIL JENKINS

1. Whatsapp messages between the Respondent and Phil Jenkins evidence the Respondent's laundering of criminal proceeds derived from Ms. Molina's prostitution enterprise through Phil Jenkins' facilitation of cash pick-ups in Dubai.
2. On 16 June 2018, as part of the exchange where the Respondent meets Phil Jenkins demand for a "woman" for 3 days, the Respondent messages Phil Jenkins saying "... she is in Dubai now – she just picked up lots of cash – Do you have people there?" To which Phil Jenkins responds "I do. How much does she have on her?" and the Respondent in return responds "30k Euro I think."
3. On 9 September 2018 the Respondent messages Phil Jenkins saying "Hi Phil, Is your person in Dubai still there? If you could he / she collect money for Olivia? Thanks Karim"
4. On 18 September 2018 Phil Jenkins responds "Received 10,800 from your girl. In Dubai." To which the Respondent responds "Yes. Thanks."
5. The Respondent himself told the Applicant Ms. Molina gave him money for "safekeeping". Ms. Molina, when speaking about the Respondent, stated "He has my cash, and he has my Bitcoins. The cash, he always finds an excuse and he does not want to give me my cash." When asked whether the cash was at Metrobank Ms. Molina responds "I don't know which bank. It's in a safe ... it is £180,000 in cash ... he just said it's in a safe deposit box."
6. Ms. Molina provided me with photographs of cash taken at the marital home in London England and showing:

- a) In the first picture USD 3,500, GBP 1,000 and EUR 2,855 with the names Karim and Olivia written by hand;
 - b) In a second what appears to be USD 48,352, GBP 22,000 and EUR 63,500; and
 - c) In a third USD 7,352, GBP 5,000, and EUR 57,675.
7. The cash generated by Ms. Molina's prostitution enterprise was laundered by the Respondent on behalf of Ms. Molina and integrated by virtue of:
- The Respondent causing Sphere Digital, owned by Phil Jenkins, to pay Ms. Molina's rent in London, England per an 18 October 2018 Whatsapp where the Respondent messages Phil Jenkin's saying "Phil, Olivia would like to use some of the money with you to pay her rent." and provides wire transfer instructions citing the amount of £11,700 for payment to which Phil Jenkins confirms "Will send tomorrow."
8. When asked whether Sphere Digital paid her rent Ms. Molina corroborated "I gave him (Phil Jenkins) money. They collected it from Dubai and they did a transfer because at that time I did not have a bank account."
9. The Respondent's records transferred to the Applicant via Signal messenger evidence an additional rent payment made by Sphere Digital to Knight Frank on Ms. Molina's behalf for £32,230 which the Respondent instructs Sphere Digital to deduct from his expenses reimbursement on 5 April 2019.
10. The pictures of cash in multiple currencies held in the Respondent's "Tumi" cases taken in the marital home and provided by Ms. Molina to the Applicant; and
11. The Respondent himself stating to the Applicant that he laundered money via American Express allowing Ms. Molina to incur expenses on his American Express cards in settlement of funds received by him and providing a detail of certain of said expenses to the Court.

MR. ZAHMOUL'S LAUNDERING OF CRIMINAL PROCEEDS VIA UK BANK ACCOUNTS ESTABLISHED AND MANAGED BY THE RESPONDENT ON BEHALF OF MS. MOLINA'S PROSTITUTION ENTERPRISE

As previously stated,

1. Ms. Molina in her own words stated that the Respondent and Phil Jenkins arranged for cash pickups because she did not have a bank account; and

2. The Respondent facilitated Ms. Molina's access to the UK financial system by assisting her with the opening of the account identified by IBAN BE23 9670 9691 at Transferwise citing her address as 38 Stadium Street, London, England SW10 0PT.
3. Per the Respondent's own records transferred to me via Signal messenger, the Respondent maintained, amongst other documentation related to Ms. Molina's prostitution enterprise:
4. Copies of the Transferwise Statements for the account identified by IBAN BE23 9670 9691 since at least March 2018;
5. The tracking of funds flows in Euros, Sterling, AED, USD and BTC allocated amongst himself, Ms. Molina, others and several accounts including Oli Transferwise referencing the above-captioned Transferwise account; and
6. Book-keeping records maintained using Xerox small business accounting software detailing the purpose of credits and debits associated with the criminal property derived from Ms. Molina's prostitution enterprise.
7. By establishing the Transferwise account and managing the books the Respondent facilitated the laundering of criminal property derived from Ms. Molina's prostitution enterprise as directly evidenced by the receipt payments totaling at least € 74,000 from Sheikh Salah bin Fayed Al Nahyan, with whom Ms. Molina engaged in a WhatsApp exchange relating payment for women who had been with him in his room for four days, between December 2018 and May 2019. These transfers are evidenced in both the Transferwise statements, and the booking records maintained by the Respondent and transferred to the Applicant via Signal messenger as detailed below:

<u>REFERENCE</u>	<u>DATE</u>	<u>AMOUNT</u>
Received Money from SH FALAH BIN ZAYED AL NEHYA	18 December 2018	€ 9,700.00
Received Money from SH FALAH BIN ZAYED AL NEHYA	17 January 2019	€ 3,507.00
Received Money from SH FALAH BIN ZAYED AL NEHYA	24 January 2019	€ 2,640.00
Received Money from SH FALAH BIN ZAYED AL NEHYA	11 March 2019	€ 8,900.00
Received Money from SH FALAH BIN ZAYED AL NEHYA	11 March 2019	€ 4,000.00
Received Money from SH FALAH BIN ZAYED AL NEHYA	28 March 2019	€ 7,045.00
Received Money from SH FALAH BIN ZAYED AL NEHYA	1 April 2019	€ 17,765.00
Received Money from SH FALAH BIN ZAYED AL NEHYA	9 April 2019	€ 13,400.00
Received Money from SH FALAH BIN ZAYED AL NEHYA	3 May 2019	€ 7,135.00
	TOTAL	€ 74,092.00

**Mr. ZAHMOUL'S LAUNDERING OF CRIMINAL PROCEEDS VIA BITCOIN WALLETS
ESTABLISHED AND UNDER HIS CONTROL**

1. Cryptocurrency is an emerging asset class with a currency (or “fiat”) equivalent based on its trading value. Cryptocurrency has increasingly been used to transfer assets derived from criminal activity due to the pseudonymity it affords the controlling individual, the ease of transferability of “wallet” information and the ease with which trans-border payments can be made.
2. Cryptocurrency can be purchased or “mined.” Mining cryptocurrency is the equivalent of printing currency; the speculative – or early – mining of a cryptocurrency which is expected to increase in value due to market forces has resulted in significant appreciation and gains by early adopters of cryptocurrency mining.
3. Once owned, cryptocurrency is maintained in “wallets” which are broadly classified as “hot storage wallets, i.e. those held at exchanges such as Coinbase and Binance, or “cold storage” wallets which store the cryptocurrency on an electronic device such as a Ledger wallet and provide more anonymity as they are not subject to the “Know Your Customer” requirements of exchanges.
4. Cryptocurrency held in wallets can be transferred to other wallets in the same manner as which one would transfer a bank balance. Wallets receive cryptocurrency which can be considered as “credited” to the wallet’s unspent cryptocurrency balance and can send cryptocurrency which can be considered to be debited from the wallet’s unspent cryptocurrency balance. In order to claim a payment, the controlling individual needs to simply provide the payor with a wallet address.
5. All cryptocurrency activity is recorded on the blockchain. The blockchain is public and immutable and maintains a “transaction ledger” reflecting the numeric value of the cryptocurrency transferred, the date it is transferred on, its contemporaneous “fiat” value at the time of the transfer, and the “receiving” and “counterparty” wallets involved in the transaction. Each transaction on the blockchain is identified by a unique identifier known as a “hashtag.”
6. Similar to bank accounts, an individual can hold a number of distinct wallets. Chainalysis, the leading blockchain transaction monitoring and investigation tool, groups wallets considered to be controlled by the same owner into “clusters.” Chainalysis identifies clusters by their “root” address and goes on to identify the individual wallet addresses included in that “cluster.” A “cluster” of wallet addresses is akin to a family in so far as one can make a transfer to any member of that family and the entire family, or individual controlling the “cluster” will benefit.
7. Guidelines for ascertaining the ownership and control of a particular “cluster” include identifying the individual who originally funded the cluster and as well as identifying transactions sent or received from other wallets known to be controlled by said individual.

8. Chainalysis identifies the “cluster” of Bitcoin (“BTC”) wallet addresses known as 1AWKgMEwDjHxL3WcaoijvmnH5LXkTA3zw (a.k.a. the “Molina Cluster”) as including 54 wallet addresses.
9. A Chainalysis download provides the following information amongst other transactional details. “This file contains a list of all cluster addresses of the cluster identified by the following root address: 1AWKgMEwDjHxL3WcaoijvmnH5LXkTA3zw.” “Each line represents an address of the cluster.”: [Emphasis has been added to clearly identify the wallet address the Respondent cited on the invoices; the wallet addresses receiving BTC billed for prostitution services; the wallet addresses receiving BTC billed for prostitution services and sending BTC derived from prostitution services to the Respondent’s Coinbase account; and the wallet addresses sending BTC derived from prostitution services to the Respondent’s Coinbase account.

Address
1AWKgMEwDjHxL3WcaoijvmnH5LXkTA3zw
1LJC3RAAtKHHH2Zf9rPCFV5gSW6SpfcbWv
1FhcrdXFAELt6LmWuVxFS9KzViUH4rzJQu
17eG32ZVZs9Kp61LKZyPmQSHFzSAu1Q2kT
1Mmn8He27MBiiRao7xXemLqxjeq66ZtTsq
15Kjn8KXhMjQzb5oo7ekCBTRwjNSfpbXXa
1Hv9NkVxxnBuvLvGin8Y2XicZfyqrbeVuq
1DM1BouaPAmsPejPg9s8nvLJrcNR4khHB
15RpLhaaz4cLeR4v15zm7gStCBPpxHSrbc
1KeymF9Ko4kKBb5HYyF2DSgrTEiauxQMqs
1CGtG2Vm59dSRq7GfSRnCMvXqggjgtoW6E
18sszL2jdHVy6QBWiUWr8YJd1gngfseGgq
1CLqEsM9NVm2ZNNsq6Yks6RPkaxR6YneD
19dSkhgG1trPqKKVABT7gLqXk7xdh5YzGx
12WYr8kkWvcQAXmVHuDxUmUdRu6UfWJ1Yv
18H5Gu9aBjbKjQRTKsHvM1BKKhdd4gWRgA
1JkbRFRQFhx44X5DhzipU8jFfr4SvxesRo
bc1qq9qdus6x6c6gy8cctuut606n3qkrd3x6rlq53r
bc1qqnjqzl2lezlvrn0rr5eu302c52g507m8fc5mha
bc1qq24u2kt3jj5cazsfha7u8x4jztur57qmrqld0p
1PTRPDYLiSfoXjAHvZWkwSHv5UteMMF1GC
1JXLdHvBow2Rj6AVEhJ5MB1z2r4fo8hMge
1KaMsDZ8dp9r6YZ5L8K5ArVALd7jaUZgQQ
1aki2QiNBbffitPZR6yhM7ZM1QhdxQj5k
1CVoqHsSdUE1vNfhACv6Gu41QkCNH9HREn
18cLa3wttDMPmm8Rh4RWuJ7vLByFyBbTFQ
bc1qtdz273xcv3d485czzhptusvmu9sc6wwarpdzjv
bc1qpfg6syulgjwnmnnaxx3tl6mvzhddzdwm9g4lta
1HjKavpvNBkvWpAc587Nv76SLTqiyAeQ1R
1MLa9yULqU7gtNnWvkzcEPQxnHzoxJFfi
1GqYjXH6zDoAgpHssvm9FkqgMghF5Lh33H

bc1qmkzh2swkpatsy5ar3829dv70t2x2j903zgzugr
bc1qjsg4t0p6gyukq66af77seksqxdku7fyasynnlm
1G94MaaJe91ZP2QEuhfvFKyd83kHm3Rx8b
bc1q5jeg5r8xamkv23fmrt9me2ajydfu7zf5fj44yc
bc1qqacfjpm8sdu0prhs83503qsjj2tpdhvuwg328d
bc1qcpax849c02mmpmxcps0cde6s3xgx252fh2uneh
bc1qukzup4euwtnt8y0p2vzc8krl3e6840fusvcfsq
bc1q828vxzlf7y0d6pqqc5vuyp3pa8hdhw52ngy7aa
bc1q4qjn2qjzfqm76faq69vc20xl9a43gzryx03uge
bc1q9e5u59xf5p6gpnc8rh7x2v3069ayz9x8mtsyz9
bc1q0t0cs72xj8qkt4hy2axct9z563vdxagkvx6pa8
bc1qqdspc0wj8ys8jzg57d54wveqtgkyueyekqp3vx
bc1qfuux3xc2cplmpls47s0me34d6ut52jzgexejmrm
bc1qqqjgc6vukrjqt2dlytkpyl22k5s8wjsgrsftt
bc1qa086slqu8rz82j82ulhwj942q0g97uehzdf3l4
bc1qherc4nqff5p0tz3pay24vfy2cdefvv98svjl3m
bc1qywrags2cfq58wkgsrt5k6n5h4amfp7actqdeuk
1E5JuYDiV3qy2bjgukFo4xwVTicw8DyUi3
bc1qd8y7ljh6p3zwtkwsvyh7l5wdvrs7y86tfvfe00
bc1qsr0c0e6mqzvxx3qhrhgy2dmup459p9eus6hxht
bc1qje9cc68x8h7vy88us5x5agce8nk507pe654t48
bc1q8ntas0cc50ujrjdtjta2xvn0n2frvdyfz8xcqr
bc1qzj66gtpkws4fg59xcwqhfxlf485a9w9pfstjws
Total addresses: 54

```

< ANON-2138199399 [1JkbRFRQF...] -1.14000000 B
< ANON-2138199399 [bc1qq9qdu...] -0.04819615 B
  p2wpkh
< ANON-2138199399 [bc1qqnjqz...] -0.00528895 B
  p2wpkh
< ANON-2138199399 [bc1qq24u2...] -0.17703487 B
  p2wpkh
< ANON-2138199399 [1PTRPDYLi...] -5.30000000 B
< ANON-2138199399 [1JXLdHvBo...] -3.41000000 B

```

10. Evidence supporting Mr. Zahmoul’s known control of the “Molina Cluster” includes the facts that he:

- Has sophisticated knowledge of and held BTC assets in contrast to Ms. Molina who in her own words stated to the Applicant that the Respondent “put her business on BTC”;
- Made the original funding transfers of BTC to the Molina Cluster;

- c) Sent additional transfers to and received transfers from the Molina Cluster;
 - d) Produced and maintained documentation requesting payments to a wallet addresses contained within the Molina Cluster; and
 - e) Maintained books and records matching the exact balance in the “Molina Cluster” as at 12 December 2018.
11. The Respondent’s false statements relating to Ms. Molina’s ownership and control of the Molina Cluster are contradictory to Ms. Molina’s professional background and clear lack of familiarity with the asset class as evidenced by her public videos and own statements. The Respondent’s production of a letter from Ms. Molina attesting to her alleged ownership and control of the Molina Cluster is circumspect at best given its redaction, knowledge of Ms. Molina’s email address and passwords and access to her signature.
12. The Respondent’s Coinbase statements evidence transfers of BTC to BTC wallet addresses contained within the “cluster” of wallet addresses known as 1AWKgdmEwDjHxL3WcaoiymnH5LXkTA3zw (a.k.a. the “Molina Cluster”) which are indicative of his establishment and control of the Molina Cluster prior to his claimed meeting of Ms. Molina in 2017 as follows which were the first BTC funding said “cluster”:

<u>RECEIVING ADDRESS</u>	<u>DATE</u>	<u>AMOUNT SENT</u>
1AWKgdmEwDjHxL3WcaoiymnH5LXkTA3zw	3 December 2017	0.00236434 BTC
1LJC3RAAtKHHH2Zf9rPCFV5gSW6SpfcbWv	4 December 2017	0.08490317 BTC
1FhcrdXFAELt6LmWuVxFS9KzViUH4rzJQu	4 December 2017	0.00227622 BTC

13. On 21 July 2019 the Respondent’s Coinbase statement evidences he sent additional BTC to yet another BTC wallet addresses contained within the Molina Cluster.

<u>RECEIVING ADDRESS</u>	<u>DATE</u>	<u>AMOUNT SENT</u>
1GqYjXH6zDoAgpHssvm9FkqgMghF5Lh33H	21 July 2019	0.08497343 BTC

14. Between at least December 2018 and May 2019, the Respondent used the “Molina Cluster” he established and controlled to bill for Ms. Molina’s prostitution services and launder criminal property. When asked whether the Respondent put her business on BTC Ms. Molina replied “Yes, he told me clients should pay in Bitcoins. And that’s what we did.”
15. The three stages of money laundering involve the ***placement, layering or disguising, and integration of criminal property***. The Respondent:

- a) Placed the criminal property derived from his management of Ms. Molina's prostitution enterprise in the "Molina Cluster" he controlled;
 - b) Layered the criminal property by disguising the illicit BTC received as payments to himself from legitimate sources;
 - c) Integrated the criminal property for his benefit by transferring the BTC to his Coinbase account, subsequently liquidating said BTC and using the proceeds to pay down the jointly held mortgage on the jointly owned Wyoming properties in an effort to place liquidity outside of the Applicant's reach; and
 - d) Attempted to ensure the paydown of the mortgage benefited him disproportionately via a number of false statements and violations of the United States Tax Code and Internal Revenue Service rules in a scheme to usurp control over the most valuable property and limited the Applicant's enforcement of the financial remedy pronounced by the High Court to the lesser valuable property.
16. The Respondent's records sent to the Applicant via Signal messenger evidence that he created at least nine invoices on behalf of Blue Ocean Services FZE billing for prostitution services rendered by Ms. Molina and the women she is known to have solicited.
17. The transaction ledger for the "Molina Cluster" evidence the receipt of BTC totaling 25.72 BTC via nine transactions matching the date of the above captioned invoices and the numeric amount billed on each invoice between 12 December 2018 and 18 May 2019.
18. While the specific wallet address on the invoices is one of the fifty-four address grouped in the "Molina Cluster" the cluster as a whole benefits from the BTC received. The wallet address appearing on the invoices is the same wallet address to which the Respondent sent BTC on 19 July 2019.
19. Between 7 April 2019 and 11 February 2020 the Respondent received a total of 23.01 BTC into his Coinbase account from the "Molina Cluster" for, in his own words, the:
- a) Repayment of Ms. Molina's rent which the Respondent was known to have facilitated through his employer Phil Jenkins who was also engaged in making cash pickups for Ms. Molina's prostitution enterprise,
 - b) A "BTC Exchange vs. 85,000 EUR paid from UBS" which held the majority of the non-cryptocurrency assets forming part of the marital estate; and
 - c) In exchange for "From Olivia vs. 60,000 USD Order."
20. The nine transactions received by the "Molina Cluster" are detailed below:

RECEIVING ADDRESS	DATE	AMOUNT RECEIVED
18H5Gu9aBjbKjQRTKsHvM1BKKhdd4gWRgA	12 December 2018	5.97 BTC
1JkbRFRQFxbz44X5DhZpU8jFfr4SvsesRo	8 January 2019	1.14 BTC
1JXLdHvBow2Rj6AVEhJ5MB1z2r4fo8hMge	5 February 2019	3.41 BTC
1aki2QiNBbffitPZR6yhM7ZM1QhdxQj5k	22 February 2019	1.83 BTC
1aki2QiNBbffitPZR6yhM7ZM1QhdxQj5k	24 February 2019	0.79 BTC
1CVoqHsSdUE1vNfhACv6Gu41QkCNH9HREn	27 February 2019	7.93 BTC
18cLa3wttDMPmm8Rh4RWuJ7vLByFyBbTFQ	2 March 2019	1.75 BTC
1HjKavpvNBkvWpAc587Nv76SLTqiyAeQ1R	6 May 2019	0.4 BTC
1MLa9yULqU7gtNnWvkzcEPQxnHzoxJFfi	18 May 2019	2.5 BTC
	TOTAL	25.72 BTC

21. The transactions sending BTC from the “Molina Cluster” to the Respondent’s Coinbase account are detailed below and are evidenced in the Respondent’s Coinbase statement as well as his submissions to the Court under sworn statement:

SENDING ADDRESS	DATE	AMOUNT SENT
128bgsVsbLVTZZQ5xx9hTXr1F4r1Cbr86c	12 December 2018	1 BTC
128bgsVsbLVTZZQ5xx9hTXr1F4r1Cbr86c	8 January 2019	7 BTC
38Qw7eXxzJv4nq3Vgf2JaQd2SBu4h6vN12	5 February 2019	5 BTC
38Qw7eXxzJv4nq3Vgf2JaQd2SBu4h6vN12	22 February 2019	5 BTC
1EQxsRMr7X697LKT2sjwRSmx6YmB9eXA1K	24 February 2019	0.01 BTC
1EQxsRMr7X697LKT2sjwRSmx6YmB9eXA1K	27 February 2019	5 BTC
	TOTAL	23.01 BTC

22. On 10 June 2020 the Respondent included the BTC derived from criminal property amongst his assets in a loan application to a federally insured US Bank.
23. Between 15 September and 26 September 2022, the Respondent liquidated the cryptocurrency held in his Coinbase account totaling €1,575,922.88, the majority of which consisted of the 23.01 BTC in criminal property he laundered, and received the euro equivalent into his Revolut Euro account held as part of his relationship with Revolut Ltd. in London.
24. The Respondent then used the euro equivalent derived from criminal proceeds to transfer \$1,550,000 to Bank of Jackson Hole between 16 September and 26 September 2022 from Revolut Ltd., The Columbus Building, Floor 4, London, United Kingdom, GB for the purposes of “WY Mortgage Repayment.” thereby integrating the laundered criminal property for his financial benefit and in furtherance of a scheme to defraud the Applicant of her financial benefit in the WY properties.

BASIS FOR CRIMINAL ALLEGATIONS PURSUANT TO THE SEXUAL OFFENCES ACT OF 2003

<https://www.cps.gov.uk/legal-guidance/prostitution-and-exploitation->

[prostitution#:~:text=the%20Legal%20Guidance.-](#)

[,Exploitation%20of%20Prostitution%20%2D%20Causing%20or%20Inciting%20Prostitution%20for%20Gain%3A%20Section,part%20of%20the%20world%2C%20and](#)

Exploitation of Prostitution - Causing or Inciting Prostitution for Gain: Section 52 Sexual Offences Act 2003

Under Section 52(1) A person commits an offence if:

- a) He intentionally causes or incites another person to become a prostitute in any part of the world, and
- b) He does so for or in the expectation of gain for himself or third party.

Controlling Prostitution for Gain: Section 53 Sexual Offences Act 2003

Under Section 53(1) A person commits an offence if:

- a) He intentionally controls any of the activities of another person relating to that person's prostitution in any part of the world, and
- b) He does so for or in the expectation of gain for himself or a third party.

'Gain' is defined in Section 54(1) as:

Any financial advantage, including the discharge of an obligation to pay or the provision of goods or services (including sexual services) gratuitously or at a discount; or

The goodwill of any person which is or appears likely, in time, to bring financial advantage.

'Prostitute' is defined in Section 54(2) as:

"A person (A) who, on at least one occasion and whether or not compelled to do so, offers or provides sexual services to another person in return for payment or a promise of payment to A or a third person; and 'prostitution' is to be interpreted accordingly."

'Control' includes, but is not limited to, 'compulsion', 'coercion' and 'force'. It is enough that the person acted under the instructions or directions of the Defendant.

BASIS FOR CRIMINAL ALLEGATIONS PURSUANT TO SECTION 2 OF THE MODERN SLAVERY ACT OF 2015

See link above

Section 2 of the Modern Slavery Act 2015 creates an offence of arranging or facilitating the travel of another person for the purposes of sexual exploitation. A person commits an offence if he arranges or facilitates the victim's travel by recruiting them, transporting or transferring them, or harbouring or receiving them, with a view to the victim being exploited in any part of the world. For these purposes, exploitation involves the commission of an offence under Part 1 of the Sexual Offences Act 2003, or section 1(1)(a) Protection of Children Act 1978. It therefore captures all sexual offences including exploitation of prostitution.

BASIS FOR ALLEGATIONS RELATED TO CRIMINAL CONDUCT AND CRIMINAL PROPERTY

Part 7 of the Proceeds of Crime Act (POCA) of 2002 Section 340 – Interpretations defines Criminal Conduct and Criminal Property:

(2) Criminal conduct is conduct which—

(a) constitutes an offence in any part of the United Kingdom, or

(b) would constitute an offence in any part of the United Kingdom if it occurred there.

(3) Property is criminal property if—

it constitutes a person's benefit from criminal conduct or it represents such a benefit (in whole or part and whether directly or indirectly), and

the alleged offender knows or suspects that it constitutes or represents such a benefit.

Part 7 of the Proceeds of Crime Act (POCA) of 2002 Section 340 – Interpretations goes on to state that:

(5) A person benefits from conduct if he obtains property as a result of or in connection with the conduct.

(8) If a person benefits from conduct his benefit is the property obtained as a result of or in connection with the conduct.

(9) Property is all property wherever situated and includes—

(a) money;

(b) all forms of property, real or personal, heritable or moveable.

(c) things in action and other intangible or incorporeal property.

(11) Money laundering is an act which—

(a) constitutes an offence under section 327, 328 or 329,

(b) constitutes an attempt, conspiracy, or incitement to commit an offence specified in paragraph (a),

(c) constitutes aiding, abetting, counselling, or procuring the commission of an offence specified in paragraph (a), or

(d) would constitute an offence specified in paragraph (a), (b) or (c) if done in the United Kingdom.

BASIS FOR MONEY LAUNDERING ALLEGATIONS

Money laundering describes offences concerning the possession, concealment, conversion, transfer or making of arrangements relating to the proceeds of crime. This is not limited to money or cash.

<https://www.cps.gov.uk/legal-guidance/money-laundering-offences>

Part 7 of the Proceeds of Crime Act (POCA) of 2002 sets out the nature of money laundering offenses, namely:

§327 – Concealing etc.

(1) A person commits an offence if he—

- (a) conceals criminal property;
- (b) disguises criminal property;
- (c) converts criminal property;
- (d) transfers criminal property;
- (e) removes criminal property from England and Wales or from Scotland or from Northern Ireland.

Concealing or disguising criminal property includes concealing or disguising its nature, source, location, disposition, movement or ownership or any rights with respect to it.

§328 – Concealing etc.

(1) A person commits an offence if he—

- (a) conceals criminal property;
- (b) disguises criminal property;
- (c) converts criminal property;
- (d) transfers criminal property;
- (e) removes criminal property from England and Wales or from Scotland or from Northern Ireland.

CRIMINALIZATION OF HUMAN TRAFFICKING AND PROSTITUTION IN DUBAI

Prostitution is illegal in Dubai under Shariah Law and under Federal Law No. (51) of 2006 on Combating Human Trafficking Crimes which states:

Article (1) bis (1):

1. Whoever commits any of the following shall be deemed a perpetrator of a human trafficking crime:

- a. Selling persons, offering persons for selling or buying, or promising the same.
- b. Soliciting persons, employing, recruiting, transferring, deporting, harboring, receiving, receiving or sending the same whether within the country or across the national borders thereof, by means of threat or use of force, or other forms of coercion, abduction, fraud, deception, abuse of power or of position, taking advantage of the vulnerability the person for the purpose of exploitation.
- c. Giving or receiving of payments or benefits to achieve the consent of a person having control over another person for the purpose of exploitation of the latter.

3. Under this Article, exploitation includes all forms of sexual exploitation, engaging others in prostitution, servitude, forced labor, organ-trafficking, coerced service, enslavement, mendicancy, and quasi-slavery practices.

Article (2):

Whoever commits any of the human trafficking crimes provided for in Article (1) bis of this Law shall be punished by temporary imprisonment for a term of no less than five years, and a fine of no less than one hundred thousand AED.

Article (3)1:

Any person who was aware of a plan to commit any of the crimes provided for herein, but failed to inform the concerned authorities shall be punished by imprisonment for a period of no less than one and no more than five years and a fine of no less than five thousand dirhams or by both penalties.

https://migrationpolicy.unescwa.org/sites/default/files/policies/2015_UAE_Federal_Law_No_1.pdf

As amended under Federal Law No. (1) of 2015, prostitution is Illegal in Dubai Under Shariah Law and Under Article 33 of Federal Decree Law No. 34 of 2021 which states provides penalties for incitement to debauchery using a computer network. Any person committing said offense “Shall be sentenced to temporary

imprisonment and a fine ranging between AED 250,000 and AED 1,000,000 whoever incites or entices another to engage in prostitution or debauchery or assists therein, using a computer network or any means of information technology. Penlaty shall be imprisonment for a minimum of (5) years and a maximum fine of AED 1,000,000 if the victim is a child.”

<https://u.ae/-/media/Documents-2022/Federal-Decree-Law-No-34-of-2021-on-Combatting-Rumors-and-Cybercrimes-Arabic.ashx>